INDUSTRIAL COURT OF MALAYSIA
CASE NO: 14/4-1378/22

Between

MOHAMAD HIZAM BIN SUWARDI @ SURIP

And

CHEMI-CON (MALAYSIA) SDN BHD

AWARD NO. : 1821 OF 2025

Before	:	**Y.A. Puan Eswary Maree - Chairman**
Venue	:	Industrial Court Malaysia, Kuala Lumpur
Date of Reference	:	12.09.2022
Dates of Mention	:	17.10.2022; 20.02.2023; 03.07.2023; 29.08.2023; 06.03.2024 & 20.05.2025
Dates of Hearing	:	01.08.2023; 02.08.2023; 03.09.2024; 04.09.2024 & 13.02.2025
Representation	:	Mr. Chandra Segaran Rajandran (Counsel for the Claimant) Messrs Prem & Chandra Mr. Edward Andrew Saw Keat Leong & Mr. Jerry Low Kok Kiang (Counsels for the Company) Messrs Josephine, L K Chow & Co.

REFERENCE

This is a reference under Section 20(3) of the Industrial Relations Act 1967 as amended by the Industrial Relations (Amendment) Act 2020 (the Act) by the Director General of Industrial Relations, emanates from the dismissal of **Mohamad Hizam bin Suwardi @ Surip** ("the Claimant") by **Chemi-Con (Malaysia) Sdn Bhd** ("the Company") on 28.12.2021.

AWARD

[1] This Court will determine the issues before it and make its findings based on the pleadings, notes of proceedings, the relevant oral and documentary evidences, the cause papers and submissions. The following documents were filed before this Court:-

(i) Statement of Case dated 08.11.2022;
(ii) Statement in Reply dated 16.01.2023;
(iii) Rejoinder dated 07.02.2023;
(iv) The Company's Bundle of Documents : COB-1;
(v) The Company's 1 Page Diagram Document : COB-2;
(vi) The Claimant's Bundle of Documents (1) : CLB-1;
(vii) Witness Statement of Nur Irdina binti Bahari : COWS-1;
(viii) Witness Statement of Muhammad Hariz bin Zainuddin : COWS-2;
(ix) Witness Statement of Sofhia Khaleeda binti Nazeri : COWS-3;
(x) Witness Statement of Muhd Salikin bin Abdullah : COWS-4;
(xi) Witness Statement of Lailatul Fatihah binti Hushaini : COWS-5;
(xii) Witness Statement of Amelia binti Mohd Zailani : COWS-6
(xiii) Witness Statement of Nur Athirah binti Abdullah @ Priscilla Jati anak Roland Dau : COWS-7;
(xiv) Witness Statement of Mohd Jaya bin Parjo : COWS-8;
(xv) Witness Statement of the Claimant, Mohamad Hizam bin Suwardi @ Surip : CLWS-1;
(xvi) Witness Statement of the Claimant's Witness, Hairul Anim bin Munjari : CLWS-2;
(xvii) Witness Statement of the Claimant's Witness, Mohamad Shahrulnizam bin Jamil : CLWS-3;
(xviii) The Company's Written Submission dated 27.04.2025;
(xix) The Claimant's Written Submission dated 28.04.2025;
(xx) The Company's Written Submission In Reply dated 15.05.2025; and
(xxi) The Claimant's Written Submission In Reply dated 16.05.2025.

THE CLAIMANT'S CASE

[2] The Claimant's pleaded case can be summarised as follows:-

(a) The Claimant commenced employment with the Company on 16.08.1994 as a Mechanical Technician in the Engineering Department and was confirmed in his position three (3) months later. At the time of dismissal he held the position of Technical Assistant at the Impregnation Section in the Maintenance Department and served the Company for twenty-seven (27) years until his dismissal;

(b) The terms and conditions of the Claimant's employment were as agreed between the Company and the Electronic Industry Employees Union for the Western Region of Peninsular Malaysia (the Union). The Claimant also served as an Executive Committee Member (EXCO Member) of the Union;

(c) Together with other Union leaders, the Claimant succeeded in bringing the Company to collective agreement negotiations after the Union received recognition with the involvement of the Minister of Human Resources, who directed the Company to negotiate following a long wait after the recognition in 2011;

(d) As an Union EXCO Member, the Claimant consistently raised workers' issues during peaceful negotiations of the collective agreement, even reaching the level of the Industrial Relations Department. He had disagreements with Encik Nor Azmin Bin Said (Encik Nor Azmin), Deputy Manager of the Administration and Finance Department regarding proposals in the collective agreement. Tensions often arose in meetings with Encik Nor Azmin who appeared uncomfortable and challenged by the Claimant's stance;

(e) As a Union EXCO Member, the Claimant finally succeeded in securing the first collective agreement for the Union members in the Company, although the agreement had to be signed outside the Company premises

as they were denied access and the Company failed to provide a proper venue for a harmonious signing;

(f) On 25.11.2021 the Claimant was handed a Show Cause Letter and informed of his suspension due to a complaint from a female employee, namely COW-1, alleging sexual harassment;

(g) The Claimant submitted a written response dated 27.11.2021 to the Show Cause Letter dated 25.11.2021;

(h) Thereafter, he received three (3) other Show Cause Letters dated 30.11.2021, 01.12.2021, 01.12.2021 and he replied accordingly on 02.12.2021. The Claimant also received a letter dated 08.12.2021 extending his suspension;

(i) The Claimant also received a Domestic Inquiry (DI) Notice dated 13.12.2021 informing him that the Company would conduct a DI on 16.12.2021 at 9:00am;

(j) The Claimant submitted a letter to the Company dated 13.12.2021 informing that he would be represented by two (2) Union Officers during the inquiry. The Company replied in writing on 14.12.2021 allowing only one (1) representative;

(k) The Claimant submitted a letter dated 15.12.2021 informing that Encik Wan Nurul Azhar would represent him and requested that three (3) employees who were still working with the Company be called as witnesses. The Company agreed via letter dated 15.12.2021;

(l) On 16.12.2021 at 9:00am the Claimant attended the VIP room for the DI which lasted until approximately 8:00pm. After the inquiry, the Claimant's representative requested for a copy of the inquiry minutes. Even though the Company agreed to provide a copy but none has been given;

(m) The Claimant received a letter dated 28.12.2021 informing him that the DI had found him guilty and that he was dismissed effective 16.12.2021;

(n) The Claimant submitted an appeal as he was dissatisfied with the Company's decision, via a letter dated 03.01.2022;

(o) The Claimant states that the Company failed to give proper consideration to his twenty-seven (27) years of service and/or his defence to the alleged misconducts, despite having no disciplinary record;

(p) The Claimant contends that the Company practiced selective prosecution and conducted an unfair and unsafe procedure against him, as all witnesses and complainants were called, but he, as the accused, was not given a chance to be heard except through written responses;

(q) The Claimant also states that during the DI the prosecutor interpreted the term *"lemah"* as part of a TikTok trend. The prosecutor understood the usage of *"lemah"* as viral slang, but the Claimant was unaware of such usage. He did not understand the current trend and did not use TikTok, which led to a misunderstanding. He was not asked during the DI whether he understood this TikTok usage;

(r) The Claimant further alleges that the DI process was unfair and unsafe as the panel chairperson was not independent, sharing the same superior as the prosecutor, namely Haji Mohd Radzi;

(s) The Claimant received a letter dated 11.01.2022 stating that his appeal against the DI decision was rejected;

(t) The Claimant states that he was denied his right to work/livelihood as guaranteed under the Federal Constitution. He claims he was subjected to an unsafe work environment, victimised by false accusations and pressured by management to have complaints made against him. Some complainants were Non-Union Members or refused Union Membership;

(u) The Claimant asserts that the Company took advantage of the situation to frame misconduct charges, exaggerated the matter and removed a Union Leader from the workplace; and

(v) The Claimant contends that he had been dismissed without just cause and excuse by the Company.

THE COMPANY'S CASE

[3] The Company's case can be summarized as follows:-

(a) On 24.11.2021 the Company received a complaint from COW-1 alleging that the Claimant had sexually harassed her on 22.11.2021 (page 1 of COB-1);

(b) On 24.11.2021 the Company also received a complaint from COW-3 alleging that the Claimant had sexually harassed her on 23.11.2021 (page 2 of COB-1);

(c) On 29.11.2021 the Company received another complaint from COW-5 alleging that the Claimant had also sexually harassed her (page 3 of COB-1); and

(d) On 29.11.2021 the Company received a complaint from its employee, COW-6 alleging similar sexual harassment by the Claimant (page 4 of COB-1).

(e) Due to the seriousness of the allegations, the Company immediately initiated an investigation into the complaints. Several employees named as witnesses to the incidents were interviewed by COW-7 from the Human Resources Department.

(f) A Show Cause Letter dated 25.11.2021 regarding the complaint by COW-1 was given to the Claimant. He was also informed of his suspension on half-pay by the same letter (pages 18 to 19 of COB-1);

(g) The Company issued four (4) Show Cause Letters to the Claimant regarding the complaints and the Claimant submitted his written responses. The Company also issued a letter dated 08.12.2021 informing the Claimant that the suspension would be extended with full pay pending resolution of the complaints (pages 20 to 37 of COB-1);

(h) The Company pleads that the DI was conducted on 16.12.2021 in a proper manner and in accordance with the rules of natural justice wherein the Claimant was given full opportunity to defend himself;

(i) The Company states that the Claimant was given full opportunity to review and verify the written records of the inquiry and signed each page after confirming the contents (pages 38 to 125 of COB-1);

(j) After reviewing the documentary evidence and witnesses' testimonies presented by both the prosecution and the Claimant during the Inquiry, the Inquiry Panel found the Claimant guilty of all the charges as stated in the Inquiry Notice;

(k) Upon reviewing the inquiry notes, documentary evidence and Inquiry Report, the management concurred with the panel's decision and issued a dismissal letter dated 28.12.2021, terminating the Claimant effective 16.12.2021 (pages 126 to 127 of COB-1);

(l) The Claimant's twenty-seven (27) years of service with the Company does not shield him from disciplinary action given the seriousness of his misconduct. According to the Company's records, the Claimant had previously received five (5) disciplinary letters;

(m) The Company pleads that during the DI the Claimant was invited to present a defence and/or further explanation beyond his written replies but chose not to do so. The Company also pleads that the Claimant was represented by a representative of his own choice during the inquiry;

(n) The Company denies that the Claimant misunderstood the use of the word *"lemah"* (weak) by COW-1. Nevertheless, regardless of any misunderstanding, the Claimant should not have made such remarks and/or engaged in such conversation with a female colleague.

(o) The fact that one (1) member of the Inquiry Panel shared the same superior as the prosecutor does not necessarily render the process unfair and/or unsafe;

(p) The Company contended that the Claimant's attempt to link his dismissal to his position as a Union EXCO Member is misleading and intended to distract this Court from the real issues in this case; and

(q) The Company asserts that the dismissal of the Claimant was based on just and fair grounds.

THE LAW

[4] As was opined by His Lordship Raja Azlan (CJ Malaya) (as HRH then was) in the Federal Court decision of **Goon Kwee Phoy v. J & P Coats (M) Bhd [1981] 1 LNS 30**, it is trite that where representations are made and are referred to the Industrial Court for enquiry, it is the duty of that Court to determine whether the termination or dismissal is with or without just cause or excuse. If the employer chooses to give a reason for the action taken by him the duty of the Industrial Court will be to enquire whether that excuse or reason has or has not been made out. If it finds as a fact that it has not been proved, then the inevitable conclusion must be that the termination or dismissal was without just cause or excuse. The proper enquiry of the Court is the reason advanced by it and that Court or the High Court cannot go into another reason not relied on by the employer or find one for it.

[5] It has been settled that in cases where the dismissal was caused by the employer, it is the employer that must discharge the burden of proof that the dismissal is with just cause and excuse. This long settled principle was demonstrated in the case of **Ireka Construction Berhad v. Chantiravathan Subramaniam James [1995] 2 ILR 11** wherein the Learned Chairman opined that:-

It is a basic principle of industrial jurisprudence that in a dismissal case the employer must produce convincing evidence that the workman committed the offence or offences the workman is alleged to have committed for which he has been dismissed. The burden of proof lies on the employer to prove that he has just cause and excuse for taking the decision to impose the disciplinary measure of dismissal upon the employee. The just cause must be, either a misconduct, negligence or poor performance based on the facts of the case.

[6] On the standard of proof applicable, the Court of Appeal in the case of **Telekom Malaysia Kawasan Utara v. Krishnan Kutty Sanguni Nair & Anor [2002] 3 CLJ 314** had laid down the principle that the standard of proof that is required to prove a case at the Industrial Court is on the balance of probabilities wherein His Lordship Justice Abdul Hamid Mohamad, JCA opined:-

Thus, we can see that the preponderant view is that the Industrial Court, when hearing a claim of unjust dismissal, even where the ground is one of dishonest act, including "theft", is not required to be satisfied beyond reasonable doubt that the employee has "committed the offence", as in a criminal prosecution. On the other hand, we see that the Courts and learned authors have used such terms as "solid and sensible grounds", "sufficient to measure up to a preponderance of the evidence," "whether a case... has been made out", "on the balance of probabilities" and "evidence of probative value". In our view the passage quoted from Administrative Law by H.W.R. Wade & C.F. Forsyth offers the clearest statement on the standard of proof required, that is the civil standard based on the balance of probabilities, which is flexible, so that the degree of probability required is proportionate to the nature of gravity of the issue. But, again, if we may add, these are not "passwords" that the failure to use them or if some other words are used, the decision is automatically rendered bad in law.

LAW ON THE MISCONDUCT OF HARRASSMENT/SEXUAL HARRASSMENT

[7] This Court had consistently taken the view that the right to livelihood is as fundamental as the right to life itself **(see Kesatuan Pekerja Pekerja Perkilangan Perusahaan Makanan v Nestle Manufacturing (Malaysia) Sdn Bhd. [2023] 1 ILR 63)**. As such, it is imperative that any employee in search of this right to livelihood should be allowed to do so in a safe and secure working environment free of any aggression or harassment from any of the other employees or superiors. To this extent this Court views any acts of any employee or superior that causes a fellow employee to be put in an environment that causes fear or distress due to harassment or aggression as misconducts that warrants appropriate punishment depending on the circumstances of the case and the gravity of the alleged misconduct. When the harassment is added with acts which are sexual in nature giving rise to sexual harassment at work place then such misconduct cannot be tolerated at all under any circumstances. The punishment that will ensue may invariably be an outright dismissal depending on the seriousness of the act itself particularly if it is an objectionable conduct of the aggressor (see **Kuldeep Singh Udham Singh v Tobacco Importers and Manufacturer Sdn Bhd [2022] 4 ILR 514**).

EVALUATION AND FINDINGS OF THIS COURT

[8] It is the Company's stated case that the Claimant being a Technical Assistant had committed serious misconducts in that the Claimant had sexually harassed four (4) women employees, namely COW-1, COW-3, COW-5 and COW-6. Upon complaints being lodged and after commencing investigation, the Company issued four (4) separate Show Cause Letters to the Claimant with each letter corresponding to each allegation (pages 20 to 34 of COB-1) and the Claimant submitted his replies to the said Show Cause Letters. Upon receiving the Claimant's responses, the Company issued a notice of DI informing him of the charges, the scheduled inquiry date and his rights. The DI was conducted on 16.12.2021 and the Claimant was represented by a Union Official.

[9] The Company preferred the following four (4) charges of misconduct against the Claimant namely:-

(i) *"Anda telah melakukan gangguan seksual terhadap seorang pekerja syarikat ini bernama Nur Irdina binti Bahari pada lebih kurang pukul 12:00 tengah hari, 22.11.2021 di Bilik Inspection, bahagian IMP. Anda telah dilaporkan masuk ke dalam bilik tersebut dan bercakap dengan pekerja bernama Hariz, Shahrul dan Anim. Ketika Irdina sedang melakukan kerja, anda bergurau dengan mereka dan telah melibatkan beliau dalam gurauan tersebut tetapi gurauan tersebut melampau, menjijikkan, lucah dan bermaksud kotor bagi beliau sebagai seorang perempuan. Anda telah mengeluarkan ayat iaitu "ko pernah buat ke dengan dia kalau ko cakap dia lemah" dan cuba ko tengok dia ni dari jauh dah nampak hebat diranjang."*

(ii) *"Anda telah melakukan gangguan seksual terhadap seorang pekerja syarikat ini bernama Sofhia Khaleeda binti Nazeri (206924) pekerja daripada Jabatan Engineering/QA. Kejadian telah berlaku pada lebih kurang pukul 10:45 pagi, bertarikh 23.11.2021 di Bilik Inspection, bahagian IMP. Anda telah dilaporkan masuk ke dalam bilik tersebut dan mengeluarkan kata-kata lucah yang melibatkan diri beliau dengan mengaitkan seorang pekerja bernama Shahrul yang ketika itu berada di bilik tersebut. Perkataan yang disebut adalah "eh kau lahni dengan Shahrul, sedap apa."*

Pengadu juga melaporkan anda pernah mengeluarkan kata-kata kepada beliau seperti "malam jumaat ni, berapa round kau" dan "badan abang sakit-sakit la, tolong urutkan kejap"

(iii) *"Anda telah melakukan gangguan seksual terhadap seorang pekerja syarikat ini bernama Lailatul Fatihah binti Hushaini (176776) pekerja daripada Jabatan Engineering/IQC. Kejadian telah berlaku pada bulan Oktober 2021 di Bilik Inspection, bahagian IMP. Anda telah dilaporkan sering mengajak pengadu pergi keluar makan dan tengok wayang bersama. Anda juga ada menyebut "kau kerja ke Sabtu ni, nanti balik abang ambik kau dekat depan kilang ea kita pergi makan, tengok wayang nak bermanja-manja dengan kau." Selain itu anda juga pernah berkata*

"malam ni tolong urut abang ya, badan abang sakit-sakit lah", tolong suapkan abang gula-gula tangan abang sakit lah", kau takde pakwe ke? Tu Masrizal ada, pergilah dengan dia best apa nanti peluk-peluk dia."

(iv) "Anda telah melakukan gangguan seksual terhadap seorang pekerja syarikat ini bernama Amelia binti Mohd Zailani (156612) pekerja daripada Jabatan Engineering/IQC. Kejadian telah berlaku pada bulan November 2021 di Bilik Inspection, bahagian IMP. Anda telah dilaporkan berkata "kau pernah tidur dengan pakwe kau kan" Selain itu anda juga pernah berkata "tolong urut abang jap", "jom teman abang tengok wayang atau pergi makan ke."

[10] **Code of Practice on the Prevention and Eradication of Sexual Harassment in the Workplace (1999)** defines sexual harassment as:-

Any unwanted conduct of a sexual nature having the effect of verbal, non-verbal, visual, psychological, or physical harassment that might, on reasonable grounds, be perceived by the recipient as an offence, humiliation, or threat to their well-being.

[11] **Section 2** of the **Employment Act 1955** defines sexual harassment as:-

Sexual harassment means any unwanted conduct of a sexual nature, whether verbal, nonverbal, visual, gestural or physical, directed at a person which is offensive or humiliating or is a threat to his well-being, arising out of and in the course of his employment."

Charge (i)

[12] The Claimant was charged with committing an act of sexual harassment against COW-1 on 22.11.2021, at approximately 12:00pm, in the Inspection Room. It was alleged that while COW-1 was performing her duties, the Claimant made lewd, offensive, and inappropriate remarks of a sexual nature, including, *"Ko pernah buat ke dengan dia kalau ko cakap dia lemah"* and *"Cuba ko tengok dia ni, dari jauh dah nampak hebat di ranjang."*

[13] It was COW-1's testimony that the incident occurred in the presence of five (5) individuals in the Inspection Room namely, herself, COW-2, CLW-2, CLW-3 and the Claimant. Of the five (5), COW-1 was the only female, while the remaining four (4) were male. COW-1, a Technical Assistant, was in the room assisting COW-2. During the interaction, the Claimant attempted to "match make" COW-1 with COW-2. When COW-1 responded by saying *"tak nak"* and *"lemah"*, the Claimant made the inappropriate remarks – *"ko pernah buat ke dengan dia kalau ko cakap dia lemah" and "cuba ko tengok dia ni dari jauh dah nampak hebat di ranjang"*. These statements shocked and embarrassed COW-1, causing her to leave the room immediately and report the incident to COW-4, an Engineer in the IMP Department. COW-4 then advised her to lodge a formal complaint, which she did.

[14] COW-1 also testified that the Claimant had, on previous occasions, used sexually inappropriate language in her presence. However, she chose to ignore such remarks at the time out of respect for the Claimant, who was her senior and had long-standing service with the Company [Q&A No. 10 of COWS-1].

[15] It is apparent to this Court that the Claimant's response to this charge varied at different stages, in his replies to Show Cause Letter, during DI, in his pleading and during cross-examination:-

(a) As per this reply dated 26.11.2021 to the show cause letter, he denied making any of the remarks (page 22 of COB-1];

(b) He later claimed the incident was a misunderstanding, suggesting that the word "lemah" had been misinterpreted (paragraph 24 of Statement of Case); and

(c) During cross-examination, he conceded to making one of the remarks *"ko pernah buat ke dengan dia kalau ko cakap dia lemah"*.

[16] This Court finds that such contradictions seriously undermine his credibility and strongly supports the conclusion that he did, in fact, make the sexually inappropriate remarks as charged.

[17] Furthermore, the evidence of COW-2 affirms that the Claimant was trying to pair him and COW-1 and that the Claimant indeed made the remark/statement *"ko pernah buat ke dengan dia kalau ko cakap dia lemah"*. CLW-2 affirms that the Claimant was trying to pair COW-1 and COW-2. CLW-3 affirms that the Claimant used words that is *"lucah dan kotor"* and that he made the remark/statement *"ko pernah buat ke dengan dia kalau ko cakap dia lemah"* (grievance report at page 10 of COB-1).

[18] From the evidence of all the individuals present, including the Claimant's own admission, it is clear that at least the statement *"ko pernah buat ke dengan dia kalau ko cakap dia lemah"* was made by the Claimant. The remark implicitly questions whether COW-1 had engaged in sexual activity with COW-2 to be able to comment on him being *"lemah"* (weak) and in this context to be understood and interpreted by the Claimant as weakness in male sexual performance or stamina (*"batin*"). This remark was clearly intended and perceived as sexual in nature. This is further supported by the reaction of the witnesses, all of whom understood the remarks to reference sexual performance or bodily abilities, thus constituting unwanted and inappropriate conduct of a sexual nature.

[19] The Company also alleged that the Claimant proceeded to snap his fingers in front of his own private area, allegedly directed at COW-2. While the precise angle or positioning of the gesture may differ according to the witnesses' accounts, the intent behind it was clear and not in dispute. All three (3) witnesses, COW-2, CLW-2 and CLW-3 consistently testified that the gesture was made in a manner implying sexual inadequacy, specifically referring to male performance or *"lemah tenaga batin*." CLW-2 observed the gesture and interpreted it as referring to COW-2's private parts, while CLW-3 confirmed hearing the Claimant say, *"ko lemah ke, tak naik ke"*. It is apparent to this Court that these actions and remarks, taken together, clearly reinforces the sexually inappropriate and offensive nature of the Claimant's conduct during the incident.

[20] Based on the definitions of sexual harassment under the **Code of Practice on the Prevention and Eradication of Sexual Harassment [supra]** and **Section 2 of the Employment Act 1955 [supra]** this Court finds that the Claimant's conduct

and remarks, whether framed as a joke or not, clearly falls within the definition of sexual harassment.

[21] In the case of **Abdul Halim Mohd Salleh v. Cagamas Berhad [2021] 4 ILR 284** the Industrial Court found, among others, that inappropriate comments, including a joke made by a superior, constituted sexual harassment and further held as follows:-

> *[18] In relation to charge 71 which had pertained to the claimant's inappropriate intimate or personal enquiries against COW13, the claimant had stated that he had uttered the words in jest and that it had been meant as a joke. In cases of sexual harassment, the motive of the perpetrator is irrelevant. What is important is the effect that the conduct of the perpetrator has on the victim. His inappropriate enquiries, when looked at in totality, had given the impression that COW13 had been having an intimate or scandalous relationship with the CEO, which had humiliated and disgusted COW13, especially since it had been uttered in the presence of her other colleagues. The utterance of the enquiries, which had been personal and sexual in nature, had also been witnessed by COW6 and COW11. His conduct had been unbecoming of someone in his position and he had breached the Code of Ethics and the Guidelines. He had, by his actions, committed serious misconduct and been guilty of this charge.*

[22] In the case of **Vasuthevan Athaly v. Freescale Semiconductor (M) Sdn Bhd [2013] 1 ILR 73 (Award No : 1401 of 2012)** the Industrial Court made an observation on what constituted sexual harassment:-

> *Ashgar Ali in his book "Dismissal from Employment and the Remedies", Lexis Nexis, 2007, describes "sexual harassment" as follows: "Sexual harassment refers to sexual conduct which is imposed on, and is unsolicited or unreciprocated by the recipient, for example, repeated unwelcome sexual comments, looks or physical contact, among others."*

The key element in cases of sexual harassment is the feature that the acts of the alleged "perpetrator" are unsolicited or unreciprocated by the recipient. In other words, they are unwelcome.

The Code of Practice on the Prevention and Eradication Sexual Harassment at the Workplace (issued by the Ministry of Human Resources in 1999, and which acts as a guide), refers to sexual harassment as any "unwanted conduct of a sexual nature…"
Ashgar Ali, taking the clue from the said code of practice enumerates the types of sexual harassment; and elaborates as follows:-

1. Verbal harassment : Making sexually suggestive comments such as jokes, jesting, kidding, sounds and questioning, for example, subjecting a female worker to sexually suggestive comments, the learned author goes on to observe:-

……

The Learned Author goes on to observe:

It has also to be borne in mind that many cases of sexual harassment may go unreported with the victim suffering in silence. In view of the social stigma and fears that the complainant may not be believed or taken seriously, and also the fear of reprisal, ie repercussions. Sometimes there is also a delay in reporting, as in cases where the complainant only plucks up the courage to come forward and report after seeing another colleague filing such complaint.

[23] In the case of **Ahmad Zailani Junoh v. Alam Flora Sdn Bhd [2008] 2 LNS 0104** the Claimant was found guilty of sexual harassment for making inappropriate remarks to a subordinate, including a comment with sexual innuendo - *"kalau mahu malam ini dengan suami awak, malam ini juga suami awak bagi ke?".* The Industrial Court determined that the remarks caused emotional distress to the victim and constituted sexual harassment as defined by the Code of Practice on the Prevention

and Eradication of Sexual Harassment in the workplace. The dismissal of the Claimant was upheld as justified due to the severity of the misconduct.

[24] Based on the consistent and corroborated testimonies of the witnesses present, including the Claimant's own admissions, this Court finds that Charge (i) has been established on a balance of probabilities. The Claimant's conduct, which included sexually suggestive remarks, offensive gestures, and inappropriate insinuations, was clearly unwelcome, demeaning, and offensive to COW-1. The remarks were made openly in a shared workspace, in the presence of other male colleagues, and had the immediate effect of causing embarrassment and discomfort to the complainant.

Charge (ii)

[25] Charge (ii) is about the Claimant having committed an act of sexual harassment against COW-3 on 23.11.2021, at approximately 10:45am in the Inspection Room of the IMP Department. During the incident, the Claimant made a lewd remark involving COW-3, CLW-3 and the Claimant. The remark uttered by the Claimant was, *"eh kau lahni dengan Shahrul, sedap apa" .* The Claimant was also charged with having made prior inappropriate remarks of a sexual nature to COW-3 on other occasions, *"malam jumaat ni, berapa round kau" and "badan abang sakit-sakit la, tolong urutkan kejap".*

[26] According to the testimony of COW-3, while she was performing her duty with CLW-3 in the Inspection Room, the Claimant entered the Inspection Room and attempted to "match make" her with CLW-3 with the remark: *"eh kau lahni dengan Shahrul, sedap apa".* The remark shocked and embarrassed COW-1, causing her to immediately leave the room and report the incident to COW-4. COW-4 then advised her to lodge a formal complaint, which she did (page 2 of COB-1).

[27] This Court finds that the evidence of CLW-3 both during cross-examination and in his grievance report, clearly supports the account provided by COW-3. He affirmed that the Claimant was attempting to "match make" him with COW-3 during the incident, thereby reinforcing the sexually suggestive context of the remark and lending credibility to COW-3's version of events.

[28] While CLW-3 had stated that he did not hear the specific phrase "*sedap apa"*, he candidly admitted that he was not paying full attention at the material time. However, he unequivocally confirmed that he observed COW-3 leaving the Inspection Room immediately after the Claimant made the remark, which he believed was an attempt by COW-3 to distance herself from the Claimant. It is apparent to this Court that this reaction is consistent with someone who had just been subjected to an inappropriate and embarrassing comment and it further corroborates COW-3's account of the incident.

[29] It was established that COW-4 and COW-8 confirmed that COW-4 had informed COW-8 who is the Claimant's Superior about the complaint made by COW-3 as well as the earlier complaint by COW-1. Following this, COW-8 testified that he instructed En. Kamal from the same department to notify the Claimant of the complaints. Subsequently, the Claimant approached COW-8 and stated that he had already explained the situation to COW-4 claiming that the incidents were merely jokes and had been misunderstood. This corroboration supports the conclusion that the Claimant did, in fact, acknowledge having made the remarks and sought to characterize them as jokes rather than denying them outright.

[30] With regard to the issue of COW-3's inability to dissect or translate every element of the Claimant's statement word-for-word, this Court finds that does not negate its offensive and sexual nature. The remark was delivered in Malay colloquial slang with an unmistakable sexual undertone. It is apparent the phrase *"sedap apa"*, when used in this context implies sexual pleasure, and when paired with the reference to her being "with Shahrul" *("kau lah ni dengan Shahrul")*, it suggests a physical relationship. Both COW-3 and CLW-3 clearly understood the remark to be sexual in nature, as evidenced by their immediate emotional and physical responses, COW-3 leaving the room in embarrassment, and CLW-3 acknowledging that COW-3 may be avoiding the Claimant by immediately leaving the Inspection Room.

[31] It is also the finding of this Court that the lack of full understanding of every exact word does not negate a sexual harassment claim if the overall conduct creates an intimidating, hostile, or offensive environment and causes actual emotional or psychological harm to the victim. It is not necessary for a victim to pinpoint every

precise remark; rather, the focus is on whether the conduct was sufficiently oppressive and persistent to cause alarm and distress to the victim - **Mohd Ridzwan bin Abdul Razak v. Asmah bt Hj Mohd Nor [2013] 9 CLJ 243.**

[32] Hence, Charge (ii) has been proven on a balance of probabilities. The Claimant's conduct towards COW-3 was not only offensive and demeaning but also consistent with a pattern of inappropriate behaviour previously directed at other female employees.

Charge (iii)

[33] With regard to this charge, the Claimant was charged for sexually harassing COW-5 from the Engineering/IQC Department. The incident allegedly took place in October 2021 in the Inspection Room, IMP section, whereby the remarks made to COW-5 were, *"Kau kerja ke Sabtu ni, nanti balik abang ambik kau dekat depan kilang ea kita pergi makan, tengok wayang nak bermanja-manja dengan kau", Malam ni tolong urut abang ya, badan abang sakit-sakit lah", Tolong suapkan abang gula-gula tangan abang sakit lah"* and *"Kau takde pakwe ke? Tu Masrizal ada, pergilah dengan dia best apa nanti peluk-peluk dia."*

[34] This Court finds that each statement made by the Claimant contains inappropriate innuendos, suggestive invitations, and flirtatious overtones that were uninvited and directed toward a junior colleague in the workplace. The use of terms such as *"tolong suapkan abang gula-gula", "bermanja-manja dengan kau", "tolong urut abang", Kau takde pakwe ke"* and *"peluk-peluk dia"* are all suggestive of intimacy, physical affection, which are entirely inappropriate and without doubt sexual in nature.

[35] In **Rosni Turnin v. SWM Environment Sdn Bhd [2019] 2 LNS 2948**, the Industrial Court upheld the dismissal of a supervisor for sexually harassing several female colleagues. Notably, the court acknowledged that some of the complainants could not furnish precise details or lodge contemporaneous reports due to fear or other constraints. Nevertheless, the court emphasized that the absence of strict corroboration did not invalidate their complaints. When viewed holistically and in light of the employer's duty to provide a safe working environment, the complainants' testimonies were deemed sufficiently reliable to justify dismissal.

[36] As submitted by the Company's Counsel, this Court had considered the pattern of conduct exhibited by the Claimant in relation to COW-1, COW-3 and COW-6. In all three (3) instances, the alleged misconduct occurred in the same location, namely the Inspection Room of the IMP Department and involved the Claimant making sexually charged or suggestive remarks under the pretext of "joking" or "banter". The Inspection Room has, based on the evidence, become a recurring setting in which the Claimant directed inappropriate comments toward female employees. The similarity in context, language, tone and manner strongly indicates a consistent behavioural pattern rather than isolated misunderstandings or coincidental interpretation.

[37] This Court can consider the surrounding circumstances and cumulative effect of the conduct in assessing the reliability of a sexual harassment complaint. Where a pattern emerges, especially involving similar victims, settings, and behaviours, it strengthens the conclusion that the conduct did in fact occur as alleged - **Rosni Turnin v. SWM Environment Sdn Bhd [supra].**

[38] Furthermore, this Court also finds that there is no evidence whatsoever to suggest that any of the complainants, namely COW-1, COW-3, COW-5 or COW-6 were motivated by ill intent or personal vendetta against the Claimant. No evidence was led to demonstrate that these individuals had any prior conflicts, animosity, or reasons to conspire against the Claimant. In the absence of proof of mala fide intent, the Court is entitled to treat their complaints as bona fide expressions of grievance.

[39] Hence, this Court finds that Charge (iii) has been proven on a balance of probabilities by the Company.

Charge (iv)

[40] With regard to this charge, the Claimant was charged for sexually harassing COW-6, from the Engineering/IQC Department. The incident took place in November 2021 in the Inspection Room, IMP section, whereby the remarks made to COW-6 was *"Kau pernah tidur dengan pakwe kau kan, "Tolong urut abang jap"* and *"Jom teman abang tengok wayang atau pergi makan ke".* In addition, COW-6 also gave evidence that the Claimant touched her arm when they were alone in the Inspection Room.

[41] It is apparent to this Court that this charge is similar to Charge (iii) and as such the legal and factual findings made by this Court with regard to Charge (iii) are applicable to this charge.

[42] Hence, Charge (iv) has been proven on the balance of probabilities by the Company.

Other Issues raised by the Claimant

[43] In relation to the grievance report, it was suggested during cross-examination that the grievance reports relied upon by the Company were inappropriate as the witnesses who made the report were not aggrieved persons and that the contents were not recorded verbatim but written by COW-7, the Human Resource personnel responsible for documenting the investigation. All individuals referenced as makers of the grievance reports, including the Claimant's own witnesses signed their own report and affirmed the accuracy and truth of the contents of their respective reports during the proceeding in Court. It is the finding of this Court that the said suggestion is a mere technicality and therefore without merit.

[44] With regard to the issue of procedural fairness, the Claimant alleges that the Company conducted a procedurally unfair disciplinary process. However, the evidence demonstrates that the Company fully complied with established industrial relations procedures and the principles of natural justice. Upon receiving complaints of sexual harassment, the Company promptly initiated a formal investigation, interviewing the complainants and relevant witnesses. The Claimant was issued detailed Show Cause Letters, each outlining the factual basis of the charges, and he was given sufficient opportunity to provide written responses. He also admitted in cross-examination that he understood the charges. DI was then convened in accordance with proper procedures. The Claimant was served with a notice specifying the charges, date, time, and venue, and informing him of his rights, including representation, calling witnesses, and cross-examining the Company's witnesses. These rights were fully observed. The Claimant was represented by a Union Official and both were given full opportunity to cross-examine witnesses and present a defence. After the DI was concluded, the notes of proceedings were provided to the Claimant and his representative, who signed them. The DI's findings and the Company's decision to dismiss were subsequently

communicated to him, together with a right of appeal. Notably, during cross-examination the Claimant admitted that the Company had complied with all procedural steps including issuance of Show Cause Letters, the right to representation, the opportunity to challenge witnesses and the right to appeal.

[45] Based on the facts, it is finding of this Court that there is no procedural unfairness as alleged by the Claimant. In fact, the Claimant's own admission during cross-examination that the procedures were followed further undermines his allegation.

[46] The Claimant also alleges that he was targeted and falsely accused of sexual harassment because of his role as a Union EXCO Member, claiming that the Company particularly Encik Nor Azmin viewed him as a threat due to tensions during collective bargaining. He suggests that the charges were fabricated to remove him. However, this Court finds that this allegation is entirely unsupported by evidence. The disciplinary proceedings were initiated only after formal complaints of sexual harassment were lodged by multiple employees, which the Company was legally obliged to investigate. The Claimant himself admitted during cross-examination that the Company took action only after receiving these complaints.

[47] The Claimant also attempted to suggest that the complainants' letters were orchestrated by the Company. This Court finds that this was refuted by the testimonies of COW-1, COW-3, COW-5, and COW-6, each of whom explained clearly how and why they prepared their complaints. None of the complainants demonstrated any ill motive, their evidence was consistent, credible and corroborated – [see **Magendran Gunasekharan v. Mattel (Malaysia) Sdn Bhd [2024] 1 ILR 188**]. Even suggestions of collusion, such as questions to COW-5 regarding a WhatsApp exchange with the Claimant's sister, were firmly denied. Importantly, the Claimant conceded that without these employee complaints, the Company would not have commenced disciplinary proceedings, confirming that the Company was responding to grievances and not acting out of political hostility.

[48] This Court finds that there is no evidence that the Claimant was targeted, victimized, or subjected to disciplinary action because of his role as a Union EXCO

Member. The evidence overwhelmingly shows that the Company acted only after receiving multiple independent sexual harassment complaints and was fulfilling its duty as an employer. The complainants' testimonies were credible, consistent, and untainted by any political motive. The allegation of being targeted due to his EXCO position is not proven and unsupported by any facts.

[49] Further, the Claimant alleges that he was selectively prosecuted because of his position as a Union EXCO Member. This Court is of the view that this selective prosecution requires evidence that others in similar circumstances committed comparable misconduct but were not subjected to disciplinary action. Here, the Claimant himself admitted that all four (4) sexual harassment complaints were directed solely at him and that no other employee and/or EXCO Member was implicated.

[50] In fact, during cross-examination the Claimant confirmed that another EXCO Member within the Company was not subjected to any disciplinary action and this alone undermines the claim of anti-Union targeting. This Court agrees with the Company that if it intended to suppress Union Leadership, it would logically have acted against more than one EXCO Member. The fact that only the Claimant faced disciplinary proceedings and only after multiple independent complaints, shows that the Company's actions were based on misconduct not Union politics. Furthermore, the upon being questioned, the Claimant conceded that he had no evidence to support his theory that disciplinary proceedings were initiated because of his EXCO status.

[51] It is finding of this Court based on the facts of this case that the Company responded appropriately and responsibly to credible complaints, fulfilling its obligation to ensure a safe and respectful workplace. The disciplinary action taken was a proportionate and necessary response to the serious allegations, not a retaliatory measure.

[52] Hence, with regard to the allegation of selective prosecution raised by the Claimant, this Court finds that there is no basis whatsoever for his allegation. The Claimant was the only employee against whom complaints were made and he provided no evidence that others in similar circumstances were treated differently. The

existence of another EXCO Member who faced no disciplinary action further disproves any claim of anti-Union targeting.

[53] It is also apparent to this Court that throughout the disciplinary process, the Claimant repeatedly highlighted his role as an EXCO Member of the Union, referencing it in each of his show cause replies and in his correspondence with the Company. These repeated references were not incidental, rather, they reflected an attempt to use his Union position as a shield against disciplinary action.

[54] In the case of **Kandu Sugang & Anor v. Trienekens (Sarawak) Sdn Bhd [2012] 1 CLJ 996** and **Pamol Plantations Sdn Bhd, Johore v. Vengkatajalam s/o Govindasamy [1994] 2 ILR 974**, the Industrial Court makes it clear that Union Officials are not above workplace rules. Holding a Union Office does not grant immunity from disciplinary action nor does it excuse misconduct. An employee remains an employee first, bound by contractual obligations and subject to lawful discipline.

[55] This Court finds that the Claimant's attempt to rely on his EXCO position as a form of immunity is misconceived. Union status does not shield an employee from disciplinary action nor elevate them above the standards expected of other employees.

[56] With regard go the issue of failure to lodge a police report, this Court finds that lodging a police report is not a mandatory requirement in cases of workplace sexual harassment as affirmed in **Sitt Tatt Bhd v. Flora Gnanapragasam & Anor [2006] 1 MLJ 497** and relied upon in **Magendran Gunasekharan [supra]**. The law does not impose an obligation on the victim to initiate criminal proceedings. Instead, what matters is whether the employer, upon receiving a complaint, acted responsibly and in accordance with its duty to provide a safe work environment

[57] The Claimant also asserted that the Company had failed to give due consideration to his twenty-seven (27) years of service and his alleged clean disciplinary record before deciding to terminate his employment.

[58] While the Claimant initially stated that he had no disciplinary record, he later acknowledged during cross-examination the existence of disciplinary entries in the Company's records. In particular, he confirmed the records of his disciplinary entries

recorded in the DI Notes at page 119 of COB-1, which reflects prior instances of misconduct. Hence, the Claimant is not free of disciplinary issues.

[59] This Court finds that even if he had a clean disciplinary record, it is well-established that long service and past good conduct do not grant immunity nor operate as a defence to serious misconduct, particularly where the misconduct concerns sexual harassment. In the case of **Hong Leong Bank Berhad v. Adrian Joseph D'Cruz [2005] 2 LNS 1904**, the Court considered the Claimant's long tenure and good performance but found these irrelevant in the face of egregious misconduct. The Claimant had made inappropriate sexual comments in the workplace. The Court upheld the dismissal, stating that such behaviour particularly in a professional setting was inexcusable and warranted termination.

[60] This Court would also state that it is settled principle in industrial jurisprudence that an employer is not required to prove every charge levelled against an employee in order to justify dismissal. Rather, a single established charge of sufficient gravity may, on its own, constitute just cause and excuse for termination, provided it is proven on a balance of probabilities. This position is clearly affirmed in the case of **Ahmad Rasly Haji Osman v. Padiberas Nasional Berhad [2015] 1 LNS 1427** wherein multiple charges were preferred against the employee, but the Court ultimately upheld the dismissal based solely on one proven charge. The Court held that even where other charges fail, a serious act of dishonesty or misconduct that is established on the evidence is sufficient to support the employer's decision.

[61] This Court finds that the said principle applies equally in cases involving allegations of sexual harassment, where the nature of the misconduct is inherently serious and implicates the safety and dignity of others in the workplace.

CONCLUSION

[62] Based on the totality of the evidence presented, the Company had proven all the four (4) charges on a balance of probabilities. The Claimant's actions and/or remarks toward COW-1, COW-3, COW-5 and COW-6 were clearly unwanted, inappropriate, and offensive in nature and tantamount to sexual harassment. Accordingly, the Claimant's dismissal was with just cause and excuse.

[63] It is seeming to this Court that that the Company has taken the charges preferred against the Claimant seriously in order to ensure that the employees were not being intimidated and/or humiliated and/or offended at any given time by the Claimant. It is the duty of the Company to ensure that such acts are not committed by any person what more the Claimant having served the Company for twenty-seven (27) years.

[64] As a Technical Assistant of twenty-seven (27) years of service with the Company, the Claimant should lead by example and to demonstrate sufficient seniority qualities. The Claimant is also expected to possess a greater degree of integrity to ensure save environment for his colleagues but instead he was the person intoxicating the working environment with an intolerable and unacceptable behaviour.

[65] Aligning myself to the judicial pronouncements in the aforesaid cases and based on the facts and circumstances of the present case in its entirety and the totality of the evidence and upon reading respective written submissions, this Court is of the considered view that the Company had successfully proved on the balance of probabilities the appropriateness of the Company's action against the Claimant. In the circumstances of this case, it is the considered view of this Court that it is unreasonable to expect the Company to have continued the Claimant's employment.

[66] In conclusion, having considered all pleadings, evidences and submissions available before this Court and bearing in mind Section 30(5) of the 1967 Act to act according to equity, good conscience and the substantial merits of the case without regard to technicalities and legal form, this Court finds that the dismissal was with just cause and excuse. Accordingly, the Claimant's claim is hereby dismissed.

HANDED DOWN AND DATED THIS 27th DAY OF NOVEMBER 2025

-signed-

(ESWARY MAREE)
CHAIRMAN
INDUSTRIAL COURT OF MALAYSIA
KUALA LUMPUR